

September 14, 2026
Dept. 9
Probate Tentative Rulings

23.	26PR0133	IN RE: THE PARKER FAMILY TRUST U/A/D OCTOBER 16, 1989
PETITION HEARING		

On May 11, 2026, Petitioner, Victoria Vivar (“Petitioner”) filed a Petition to Compel Trustee; for Removal of Trustee; for Elder Financial Abuse; for Return of Trust Property; for Damages for Breach of Fiduciary Duty; for Double Damages; and for Attorney’s Fees and Costs. At the hearing on June 29, 2026, counsel requested a continuance to file a written objection. The hearing was continued to August 3, 2026. Respondent, Karen Morgan (“Respondent” or “Trustee”) filed an Objection and Response on July 16, 2026. At the hearing on August 3, 2026, the Court continued the matter to perfect notice. Proof of service of the notice of hearing was filed on August 14, 2026.

The Parker Family Trust was executed by Settlor, Thelma Jo Parker and Warren Parker (collectively “Settlor”) on October 16, 1989, and amended on June 13, 2013. Surviving Settlor, Warren Parker, passed away on November 6, 2014, and was survived by his children Dennis Parker, Sheryl Ary, and Respondent. Sheryl passed away on August 26, 2020, who was survived by her five daughters, including Petitioner. Petitioner asserts that as Sheryl survived Warren by more than a period of thirty days, the share owed to her from the Trust rightfully passes to her estate.

Upon Warren’s death in 2014, Respondent became the sole acting Trustee. Pursuant to Article 2.6 of the Trust, Respondent was required to make specific distributions to each beneficiary and to distribute, in equal shares, the rest, residue and remainder of the Trust to the Settlor’s children. Petitioner contends that despite repeated requests to Respondent regarding information pertaining to the administration of the Trust and proposed plan for distribution, Respondent failed to provide the requested information. In addition, Respondent failed to provide the full Trust documents and a code-compliant accounting despite repeated requests.

Petitioner asserts that prior to Scheryl Ary’s death, she was a dependent adult for purposes of Welfare and Institutions Code § 15610.60. In addition, Dennis Parker presently has dementia and is a dependent adult for purposes of Welfare and Institutions Code § 15610.60. Petitioner argues Respondent’s failure to make a distribution during the lifetime of Scheryl Ary constitutes Elder and Dependent Adult Financial Abuse as defined by Welfare and Institutions Code § 15610.60, and Wrongful Taking as defined by Probate Code § 859.

Petitioner alleges Respondent has been negligent and has breached fiduciary duties in failing to marshal assets of the Trust, including but not limited to assets that have since been transferred to the California State Controller Unclaimed Property.

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Petitioner seeks the following orders:

1. Compel Respondent to provide a Probate Code § 16061.7 Notification by Trustee;
2. Compel Respondent to produce any and all information related to the Trust, including, but not limited to, a full and complete copy of the Trust, including the Schedule A of Trust assets pursuant to Probate Code §§ 17200(b)(7)(A) and 17200(b)(7)(B);
3. Compel Respondent to provide Petitioner with a complete and formal accounting pursuant to Probate Code § 17200(b)(7)(C) from November 6, 2014 to present, including all bank documents and records related to the cash and significant number of properties held by the Trust, all accounting information required under the terms of the Trust, including complete copies of federal and state fiduciary income tax returns, a detailed list of assets, a schedule of all fees and expenses, and other significant transactions;
4. Immediately distribute Sheryl Ary's entire beneficial interest in the Trust to Petitioner on behalf of the beneficiaries of the estate of Scheryl Ary pursuant to Probate Code § 17200;
5. Remove Respondent as Trustee for breach of fiduciary duty and naming Petitioner as Successor Trustee;
6. Return Trust funds held by the California State Controller Unclaimed Property in an amount subject to proof and no less than \$23,799.34 pursuant to Probate Code § 850, as well as double damages under Probate Code § 859;
7. Return property of Warren Parker and the Trust that has been wrongfully taken and withheld by Respondent to the Trust in an amount subject to proof and no less than \$1,500,000.00 pursuant to Probate Code §§ 17200 and 850, as well as double damages under Probate Code § 859; and
8. Attorneys' fees and costs pursuant under Elder or Dependent Adult Financial Abuse provisions and under Wrongful Taking provisions in an amount subject to proof.

Respondent objects to the Petition and asserts sixteen affirmative defenses. Respondent requests the following:

1. Deny the relief as prayed on the face of the Petition in its entirety;
2. Judicially determine that Petitioner has violated, without probable cause, the no-contest clause appearing in in Section 6.6 – Disinheritance of Contesting Beneficiaries showing at pages 16 and 17 of the Fourth Amendment and Restatement of the Parker Family Trust;
3. Judicially determine that, pursuant to the express terms of the no-contest clause appearing in Section 6.6 of the Trust, Petitioner and her issue are disinherited and have forfeited, as though they had predeceased the settlors without issue, all legacies, bequests, devises, and interests given under the Trust;
4. Instruct the Trustee of the Trust to augment Petitioner's share proportionately to the shares of the Trust for the benefit of the other devisees, legatees and beneficiaries of

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- the Trust, nonexclusively inclusive of Petitioner's siblings, who do not join in pursuit of the relief as prayed by the Petition;
5. Award attorney fees and costs against Petitioner and in favor of Respondent; and
 6. Orders that Petitioner's beneficial share of the Trust be surcharged in the amount of reasonable attorney fees and costs incurred by the Trust to defend against the Petition.

TENTATIVE RULING #23:

APPEARANCES ARE REQUIRED AT 8:30 A.M. ON MONDAY, SEPTEMBER 14, 2026, IN DEPARTMENT NINE.

IF A PARTY OR PARTIES WISH TO APPEAR REMOTELY, INSTRUCTIONS FOR REMOTE APPEARANCES CAN BE FOUND ON THE COURT'S WEBSITE.